

Court No. - 29

Case :- WRIT - C No. - 66412 of 2015

Petitioner :- Vijay Kumar Saraswat

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Ram Neta Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

On the matter being taken up today, from the side of the petitioner the billed amount is not being disputed and what is being requested before us that installment facility be extended.

To the said prayer in question, from the side of Dakshinanchal Vidyut Vitaran Nigam Ltd. (DVVNL) Shri Baleshwar Chaturvedi has entered appearance and has submitted that installment facility can be extended by the concerned official as is provided for under Paragraph 6.14 of the U.P. Electricity Supply code, 2005 and in view of this the petitioner should approach the authority concerned instead of requesting this Court to fix the installment.

We have occasion to peruse Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 and the heading of the said paragraph in itself proceeds to make a mention of installment facility and in view of this once there is self contained provision for extending the benefit of installments, then remedy of the petitioner lies in approaching the authority concerned under Paragraph 6.14 of the U.P. Electricity Supply Code, 2005. As far as we are concerned, we cannot accord any reprieve and come to the rescue of the petitioner.

The writ petition is **dismissed**.

Order Date :- 21.12.2015

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